

The Hazardous Wastes (Management, Handling And Transboundary movement) Rules, 2008*

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The Hazardous Wastes (Management, Handling And Transboundary movement) Rules, 2008*

UNION OF INDIA

India

The Hazardous Wastes (Management, Handling And Transboundary movement) Rules, 2008*

Rule THE-HAZARDOUS-WASTES-MANAGEMENT-HANDLING-AND-TRANSBOUNDARY-MOVEMENT-RULES-2008 of 2008

Published on 24 September 2008

Commenced on 24 September 2008

[This is the version of this document from 24 September 2008.]

[Note: The original publication document is not available and this content could not be verified.]

The Hazardous Wastes (Management, Handling And Transboundary movement) Rules, 2008*

Vide S.O. 2265(E), dated 24.9.2008, published vide Notification Gazette of India, Extra, Point 2, Section 3(ii), dated 24.9.2008.

10.

/530

Whereas the draft rules, namely, the Hazardous Material (Management, Handling and Transboundary Movement) Rules, 2007 was published by the Government of India in the Ministry of Environment and Forest vide Number S.O. 1676(E), dated 28th September, 2007 in the Gazette of India, Extraordinary of the same date inviting objection and

suggestions from all persons likely to be affected thereby before the expiry of the period of sixty days from the date on which copies of the Gazette containing the said notification were made available to the public;

And whereas copies of the said Gazette were made available to the public on the 28th day of September, 2007;

And whereas the objections and suggestions received within the said period from the public in respect of the said draft rules have been duly considered by the Central Government;

Now, therefore, in exercise of the powers conferred by sections 6, 8 and 25 of the

Environment (Protection) Act, 1986 (

29 of 1986

), and in supersession of the

Hazardous Wastes (Management and Handling) Rules, 1989, except in respect of, things done or omitted to be done before such supersession, the Central Government, hereby makes the following rules, namely:

Chapter I

Preliminary

1.

Short title and commencement.-

(1)

These rules may be called The Hazardous Wastes (Management, Handling And Transboundary Movement) Rules, 2008.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.-

These rules shall apply to the handling of hazardous wastes as specified in Schedules and shall not apply to

(a)

waste-water and exhaust gases as covered under the provisions of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) and the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) and the rules made thereunder;

(b)

wastes arising out of the operation from ships beyond five kilometres of the relevant baseline as covered under the provisions of the Merchant Shipping Act, 1958 (

44 of 1958

) and the rules made thereunder;

(c)

radioactive wastes as covered under the provisions of the Atomic Energy Act, 1962 (33 of 1962) and the rules made thereunder;

(d)

bio-medical wastes covered under the Bio-Medical Wastes (Management and Handling) Rules, 1998 made under the Act; and

(e)

wastes covered under the Municipal Solid Wastes (Management and Handling) Rules, 2000 made under the Act.

3.

Definitions.-

(1)

In these rules, unless the context otherwise requires,

(a)

"Act" means the Environment (Protection) Act, 1986 (

29 of 1986

);

(b)

"authorisation" means permission for generation, handling, collection, reception, treatment, transport, storage, recycling, reprocessing, recovery, reuse and disposal of hazardous wastes granted under sub-rule (4) of rule 5;

(c)

"Basel Convention" is the United Nations Environment Programme Convention on the Control of Transboundary Movement of Hazardous Wastes and their disposal;

(d)

"Central Pollution Control Board" means the Central Pollution Control Board constituted under sub-section (1) of section 3 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

);

(e)

"disposal" means any operation which does not lead to recycling, recovery or reuse and includes physico-chemical, biological treatment, incineration and disposal in secured landfill;

(f)

"export" with its grammatical variations and cognate expressions, means taking out of India to a place outside India;

(g)

"exporter" means any person under the jurisdiction of the exporting country who exports hazardous waste including the country, which exports hazardous waste;

(h)

"environmentally sound management of hazardous wastes" means taking all steps required to ensure that the hazardous wastes are managed in a manner which shall protect health and the environment against the adverse effects which may result from such waste;

(i)

"environmentally sound technologies" means any technology approved by the Central Government from time to time;

(j)

"facility" means any establishment wherein the processes incidental to the handling, collection, reception, treatment, storage, recycling, recovery, reuse and disposal of hazardous wastes are carried out;

(k)

"Form" means a form appended to these rules;

(L)

"hazardous waste" means any waste which by reason of any of its physical, chemical, reactive, toxic, flammable, explosive or corrosive characteristics causes danger or is likely to cause danger to health or environment, whether alone or when in contact with other wastes or substances, and shall include

(i)

waste specified under column (3) of Schedule I,

(ii)

wastes having constituents specified in Schedule II if their concentration is equal to or more than the limit indicated in the said Schedule, and

(iii)

wastes specified in Part A or Part B of the Schedule III in respect of import or export of such wastes in accordance with rules 12, 13 and 14 or the wastes other than those specified in Part A or Part B if they possess any of the hazardous characteristics specified in Part C of that Schedule;

(m)

"hazardous waste site" means a place of collection, reception, treatment, storage of hazardous wastes and its disposal to the environment which is approved by the competent authority;

(n)

"import" with its grammatical variations and cognate expressions, means bringing into India from a place outside India;

(o)

"importer" means an occupier or any person who imports hazardous waste;

(p)

"manifest" means transporting document prepared and signed by the occupier or his representative authorised in accordance with the provisions of these rules;

(q)

"occupier" in relation to any factory or premises, means a person who has, control over the affairs of the factory or the premises and includes in relation to any hazardous waste the person in possession of the hazardous waste;

(r)

"operator of disposal facility" means a person who owns or operates a facility for collection, reception, treatment, storage or disposal of hazardous wastes;

(s)

"recycler or reprocessor or actual user" means an occupier who procures and processes hazardous waste for recycling or recovery or re-use;

(t)

"recycling" means reclamation and reprocessing of hazardous waste in an environmentally sound manner for the original purpose or for other purposes;

(u)

"reuse" means use of hazardous waste for the purpose of its original use or other use;

(v)

"recovery" means any operation in the recycling activity wherein specific materials are recovered;

(w)

"Schedule" means a Schedule appended to these rules;_

(x)

"State Government" in relation to a Union territory means, the Administrator thereof appointed under article 239 of the Constitution;

(y)

"State Pollution Control Board" means the State Pollution Control Board or the Pollution Control Committee constituted under sub-section (1) of section 4 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

);

(z)

"storage" means storing any hazardous waste for a temporary period, at the end of which such waste is processed or disposed of;

(za)

"transboundary movement" means any movement of hazardous wastes from an area under the jurisdiction of one country to or through an area under the jurisdiction of another country or to or through an area not under the jurisdiction of any country, provided at least two countries are involved in the movement;

(zb)

"transport" means off-site movement of hazardous wastes by air, rail, road or water;

(zc)

"transporter" means a person engaged in the off-site transportation of hazardous waste by air, rail, road or water;

(zd)

"treatment" means a method, technique or process, designed to modify the physical, chemical or biological characteristics or composition of any hazardous waste so as to reduce its potential to cause harm;

(ze)

"used oil" means any oil

(a)

derived from crude oil or mixtures containing synthetic oil including used engine oil, gear oil, hydraulic oil, turbine oil, compressor oil, industrial gear oil, heat transfer oil, transformer oil, spent oil and their tank bottom sludges; and

(b)

suitable for reprocessing, if it meets the specification laid down in Part A of Schedule V but does not include waste oil;

(zf)

"waste oil" means any oil which includes spills of crude oil, emulsions, tank bottom sludge and slop oil generated from petroleum refineries, installations or ships and can be used as fuel in furnaces for energy recovery, if it meets the specifications laid down in Part B of Schedule V either as such or after reprocessing.

(2)

Words and expressions used in these rules and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

.CHAPTER II Procedure For Handling Hazardous Wastes

4.

Responsibilities of the occupier for handling of hazardous wastes.-

(1)

The occupier shall be responsible for safe and environmentally sound handling of hazardous wastes generated in his establishment.

(2)

The hazardous wastes generated in the establishment of an occupier shall be sent or sold to a recycler or reprocessor or reuser registered or authorised under these rules or shall be disposed of in an authorised disposal facility.

(3)

The hazardous wastes transported from an occupier's establishment to a recycler for recycling or reuse or reprocessing or to an authorised facility for disposal shall be transported in accordance with the provisions of these rules.

(4)

The occupier or any other person acting on his behalf who intends to get his hazardous wastes treated and disposed of by the operator of a treatment, storage and disposal facility shall give to the operator of a facility, such information as may be determined by the State Pollution Control Board.

(5)

The occupier shall take all adequate steps while handling hazardous wastes to:

(i)

contain contaminants and prevent accidents and limit their consequences on human beings and the environment; and

(ii)

provide persons working on the site with the training, equipment and the information necessary to ensure their safety.

5.

Grant of authorisation for handling hazardous wastes.-

(1)

Every person who is engaged in generation, processing, treatment, package, storage, transportation, use, collection, destruction, conversion, offering for sale, transfer or the like of the hazardous waste shall require to obtain an authorisation from the State Pollution Control Board.

(2)

The hazardous waste shall be collected, treated, re-cycled, re-processed, stored or disposed of only in such facilities as may be authorised by the State Pollution Control Board for the purpose.

(3)

Every person engaged in generation, processing, treatment, package, storage, transportation, use, collection, destruction, conversion, offering for sale, transfer or the like of the hazardous waste or occupier of the facility shall make an application in Form 1 to the State Pollution Control Board for authorisation within a period of sixty days from the date of commencement of these rules:

Provided that any person authorised under the provisions of the Hazardous Waste (Management and Handling) Rules, 1989, prior to the date of coming into force of these rules, shall not require to make an application for authorisation till the period of expiry of such authorisation.

(4)

On receipt of the application complete in all respects for the authorisation, the State Pollution Control Board may, after such inquiry as it considers necessary and on being satisfied that the applicant possesses appropriate facilities, technical capabilities and equipment to handle hazardous waste safely, grant within a period of one hundred and twenty days an authorisation in Form 2 to the applicant which shall be valid for a period of five years and shall be subject to such conditions as may be laid down therein.

(5)

The State Pollution Control Board may after giving reasonable opportunity of being heard to the applicant refuse to grant any authorisation.

(6)

Every person authorised under these rules shall maintain the record of hazardous wastes handled by him in Form 3 and prepare and submit to the State Pollution Control Board, an annual return containing the details specified in Form 4 on or before the 30th day of June following to the financial year to which that return relates.

(7)

An application for the renewal of an authorisation shall be made in Form 1, before its expiry and the State Pollution Control Board may renew the authorisation after examining each case on merit subject to the condition that there has been no report of violation of the provisions of the Act or the rules made thereunder or conditions specified in the authorisation.

(8)

The occupier or operator of the facility shall take all the steps, wherever required, for reduction and prevention of the waste generated or for recycling or reuse and comply the conditions specified in the authorisation.

(9)

The State Pollution Control Board shall maintain a register containing particulars of the conditions imposed under these rules for management of hazardous waste, and it shall be open for inspection during office hours to any person interested or affected or a person authorised by him on his behalf.

6.

Power to suspend or cancel an authorisation.-

(1)

The State Pollution Control Board, may, if in its opinion the holder of the authorisation has failed to comply with any of the conditions of the authorisation or with any provisions of the Act or these rules and after giving him a reasonable opportunity of being heard and after recording reasons thereof in writing cancel or suspend the authorisation issued under rule 4 for such period as it considers necessary in the public interest.

(2)

Upon suspension or cancellation of the authorisation the State Pollution Control Board may give directions to the person whose authorisation has been suspended or cancelled for the safe storage of the hazardous, wastes and such person shall comply with such directions.

7.

Storage of hazardous waste.-

The occupiers, recyclers, re-processors, re-users, and operators of facilities may store the hazardous wastes for a period not exceeding ninety days and shall maintain a record of sale, transfer, storage, recycling and reprocessing of such wastes and make these records available for inspection:

Provided that the State Pollution Control Board may extend the said period in following cases, namely:

(i)

small generators up to ten tones per annum;

(ii)

recyclers, re-processors and facility operators up to six months of their annual capacity;

(iii)

generators who do not have access to any treatment, storage, disposal facility in the concerned State; or

(iv)

the waste which needs to be specifically stored for development of a process for its recycling, reuse.

Chapter III

Procedure For Recycling, Reprocessing Or Reuse Of Hazardous Wastes

8.

Procedure for grant of registration.-

(1)

Every person desirous of recycling or reprocessing the hazardous waste specified in Schedule IV may make an application in Form 5 accompanied with a copy each of the following documents for the grant or renewal of the

registration:

(a)

consent to establish granted by the State Pollution Control Board under the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) and the Air (Prevention and Control of Pollution) Act, 1981 (21 of 1981);

(b)

certificate of registration issued by the District Industries Centre or any other government agency authorised in this regard;

(c)

proof of installed capacity of plant and machinery issued by the District Industries Centre or any other government agency authorised in this behalf; and

(d)

in case of renewal, certificate of compliance of effluent, emission standards and treatment and disposal of hazardous wastes, as applicable, from the State Pollution Control Board or the Concerned Zonal Office of Central Pollution Control Board.

(2)

The Central Pollution Control Board, on being satisfied that the applicant is utilizing environmentally sound technologies and possesses adequate technical capabilities, requisite facilities, and equipment to recycle, reprocess or reuse hazardous wastes, may grant registration to such applicants stipulating therein necessary conditions for carrying out safe operations in the authorised place only.

(3)

The Central Pollution Control Board shall dispose of the application for registration within a period of one hundred twenty days from the date of the receipt of such application complete in all respects.

(4)

The registration, issued under sub-rule (2) shall be valid for a period of five years from the date of its issue, unless the operation is discontinued by the unit or the registration is suspended or cancelled by the Central Pollution Control Board.

(5)

The Central Pollution Control Board may cancel or suspend the registration granted under these rules, if it has reasons to believe that the recycler or re-processor has failed to comply with any of the conditions of the registration, or with any provision of the Act or rules made thereunder.

(6)

The Central Pollution Control Board may after giving a reasonable opportunity of being heard to the applicant, by order, refuse to grant or renew the registration.

(7)

The recycler or re-processor shall maintain records of hazardous wastes purchased and processed and shall file an annual return of its activities of previous year in Form 6 to the State Pollution Control Board, on or before the 30th day of June of every year.

9.

Conditions for sale or transfer of hazardous wastes for recycling.-

The occupier generating the hazardous wastes specified in Schedule IV may sell it only to the recycler having a valid registration from the Central Pollution Control Board for recycling or recovery.

10. Standards for recycling.-

The Central Government and Central Pollution Control Board may issue the guidelines for standards of performance for recycling processes from time to time.

11.

Utilisation of hazardous wastes.-

The utilisation of hazardous wastes as a supplementary resource or for energy recovery, or after processing shall, be carried out by the units only after obtaining approval from the Central Pollution Control Board.

Chapter IV

Import And Export Of Hazardous Wastes

12.

Import and export (transboundary movement) of hazardous wastes.-

The Ministry of Environment and Forests shall be the nodal Ministry to deal with the transboundary movement of the hazardous wastes and to grant permission for transit of the hazardous wastes through any part of India.

13.

Import and export of hazardous wastes.-

(1)

No import of the hazardous wastes from any country to India for disposal shall be permitted.

(2)

The import of hazardous waste from any country shall be permitted only for the recycling or recovery or reuse.

(3)

The export of hazardous wastes from India may be allowed to an actual user of the wastes or operator of a disposal facility with the Prior Informed Consent of the importing country to ensure environmentally sound management of the hazardous waste in question.

(4)

No import or export of the hazardous wastes specified in Schedule VI shall be permitted.

14.

Import or export of hazardous waste for recycling, recovery and reuses.-

(1)

The import and export of the hazardous wastes specified in Schedule III, shall be regulated in accordance with the conditions laid down in the said Schedule.

(2)

Subject to the provisions contained in sub-rule (1),

(i)

the import or export of the hazardous wastes specified in Part A of Schedule III shall require Prior Informed Consent of the country from where it is imported or exported to, and shall require the license from the Directorate General of Foreign Trade and the prior written permission of the Central Government;

(ii)

the import of the hazardous wastes specified in Part B of Schedule III shall not require Prior Informed Consent of the country from where it is imported;

(iii)

the import and export of the hazardous wastes not specified in Part A and Part B of Schedule III but having the hazardous characteristics outlined in Part C of the said Schedule shall require the prior written permission of the Central Government, before it is imported into or exported from India, as the case may be.

15.

Procedure for export of hazardous wastes from India.-

(1)

Any person intending to export hazardous wastes specified in Schedule III shall apply in Form 7 and Form 8 along with full cover insurance policy for consignment to the Central Government for the proposed transboundary movement of the hazardous wastes together with the Prior Informed Consent in writing from the importing country.

(2)

On receipt of such application, the Central Government may give a "No Objection Certificate" for the proposed export within a period of sixty days from the date of submission of the application and may impose conditions as it may consider necessary.

(3)

The Central Government, shall forward a copy of the "No Objection Certificate" granted under sub-rule (2), to the Central Pollution Control Board, the concerned State Pollution Control Board and the concerned Port and Customs authorities for ensuring compliance of the conditions, if any, of the export and to take appropriate steps for the safe handling of the waste shipment.

(4)

The exporter shall ensure that no consignment is shipped before the "No Objection Certificate" is received from the

importing country.

(5)

The exporter shall also ensure that the shipment is accompanied with the movement document in Form 9.

(6)

The exporter shall inform the Ministry of Environment and Forest upon completion of the transboundary movement.

(7)

The exporter of the hazardous wastes shall maintain the records of the hazardous wastes exported by him in Form 10 and the record so maintained shall be available for inspection.

16.

Procedure for import of hazardous waste.-

(1)

A person intending to import or transit for transboundary movement of hazardous wastes specified in Schedule III shall apply in Form 7 and Form 8 to the Central Government of the proposed import wherever applicable, together with the Prior Informed Consent, whichever applicable and shall send a copy of the application, simultaneously, to the concerned State Pollution Control Board to enable them to send their comments and observations, if any, to the Ministry of Environment and Forests within a period of thirty days.

(2)

On receipt of the application in complete, the Ministry of Environment and Forests shall examine the application considering the comments and observations, if any, received from the State Pollution Control Boards, and may grant the permission for import within a period of sixty days subject to the condition that the importer has

(i)

the environmentally sound recycling, recovery or reuse facilities;

(ii)

adequate facilities and arrangement for treatment and disposal of wastes generated; and

(iii)

a valid registration from the Central Pollution Control Board and a proof of being an actual user, if required under these rules.

(3)

The Ministry of Environment and Forests shall forward a copy of the permission granted under sub-rule (2) to the Central Pollution Control Board, the concerned State Pollution Control Board and the concerned Port and Customs authorities for ensuring compliance of the conditions of imports and safe handling of the hazardous waste.

(4)

The Ministry of Environment and Forests shall communicate the permission to the importer.

(5)

The Port and Customs authorities shall ensure that shipment is accompanied by the movement document in Form 9 and the test report of analysis of the hazardous waste consignment in question, from a laboratory accredited by the exporting country:

[Provided that the Port or Customs authorities shall, in case of import of hazardous wastes covered under Basel numbers B1010, B1040, B1050, B1100, B1230 and B3020 as specified in Part B of the Schedule III, ensure that shipment is accompanied by the Movement Document in Form 9 and preshipment inspection certificate issued by the inspection agency certified by the exporting country.]

[Inserted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

(6)

The Customs authority shall collect three randomly drawn samples of the consignment (prior to clearing the consignment as per the provisions laid down under the Customs Act, 1962) for analysis and retain the report for a period of two years, in order to ensure that in the event of any dispute, as to whether the consignment conforms or not to the declaration made in the application and movement document.

[(6-A) Nothing contained in sub-rule (6) shall apply to the hazardous wastes covered under the Basel Numbers B1010, B1040, B1050, B1100, B1230 and B3020 as specified in Part B of the Schedule III:

Provided that the Customs authority may, at any time if it considers necessary, make random inspection of the consignment prior to clearing the consignment.]

[Inserted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

(7)

The importer of the hazardous waste shall maintain records of the hazardous waste imported by him in Form 10 and the record so maintained shall be available for inspection.

(8)

The importer shall also inform the concerned State Pollution Control Board and the Central Pollution Control Board, the date and time of the arrival of the consignment of the hazardous waste ten days in advance.

17.

Illegal traffic.-

(1)

The export and import of hazardous wastes from and into India shall be deemed illegal if

(i)

it is without permission of the Central Government in accordance with these rules, or

(ii)

the permission has been obtained through falsification, misrepresentation or fraud; or

(iii)

it does not conform to the shipping details provided in the movement documents; or

(iv)

it results in deliberate disposal (i.e., dumping) of hazardous wastes in contravention of the Basel Convention and of general principles of International or National Law.

(2)

In case of illegal import of the hazardous wastes, the importer shall re-export the waste in question at his cost within a period of ninety days from the date of its arrival into India and its implementation will be ensured by the -Concerned State Pollution Control Board.

Chapter V

Treatment, Storage And Disposal Facility For Hazardous Wastes

18.

Treatment, storage and disposal facility for hazardous wastes

-(1) The State Government, occupier, operator of a facility or any association of occupiers shall individually or jointly or severally be responsible for, and identify sites for establishing the facility for treatment, storage and disposal of the hazardous wastes in the State.

(2)

The operator of common facility or occupier of a captive facility, shall design and set up the treatment, storage and disposal facility as per technical guidelines issued by the Central Pollution Control Board in this regard from time to time and shall obtain approval from the State Pollution Control Board for design and layout in this regard from time to time.

(3)

The State Pollution Control Board shall monitor. the setting up and operation of the treatment, storage and disposal facilities regularly.

(4)

The operator of the treatment, storage and disposal facility shall be responsible for safe and environmentally sound operation of the treatment, the storage and disposal facility and its closure and post closure phase, as per guidelines issued by. the Central Pollution Control Board from time to time.

(5)

The operator of the treatment, storage and disposal facility shall maintain records of hazardous wastes handled by him in' [Form 3]

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

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Chapter VI

Packaging, Labelling, And Transport Of Hazardous Waste

19.

Packaging and labelling.-

(1)

The occupier or operator of the treatment, storage and disposal facility or recycler shall ensure that the hazardous waste are packaged and labelled, based on the composition in a manner suitable for safe handling, storage and transport as per the guidelines issued by the Central Pollution Control Board from time to time.

(2)

The labelling and packaging shall be easily visible and be able to withstand physical conditions and climatic factors.

20.

Transportation of hazardous waste.-

(1)

The transport of the hazardous wastes shall be in accordance with the provisions of these rules and the rules made by the Central Government under the Motor Vehicles Act, 1988 and other guidelines issued from time to time in this regard.

(2)

The occupier shall provide the transporter with the relevant information in Form 11, regarding the hazardous nature of the wastes and measures to be taken in case of an emergency and shall mark the hazardous wastes containers as per Form 12.

(3)

In case of transport of hazardous wastes for final disposal to a facility for treatment, storage and disposal existing in a State other than the State where the hazardous waste is generated, the occupier shall obtain "No Objection Certificate" from the State Pollution Control Board of both the States.

(4)

In case of transportation of hazardous wastes through a State other than the State of origin or destination, the occupier shall intimate the concerned State Pollution Control Boards before he hands over the hazardous wastes to the transporter.

21.

Manifest system (movement document to be used within the country only).-

(1)

The occupier shall prepare six copies of the manifest in Form 13 comprising of colour code indicated below and all six copies shall be signed by the transporter:

Copy number with colour code

Purpose

(1)

(2)

Copy 1 (white)

To be forwarded by the occupier to the State Pollution Control Board or Committee.

Copy 2 (yellow)

To be carried by the occupier after taking signature on it from (sic from) the transporter and the rest of the four copies to be carried by the transporter.

Copy 3 (pink)

To be retained by the operator of the facility after signature.

Copy 4 (orange)

To be returned to the transporter by the operator of facility/ recycler after accepting waste.

Copy 5 (green)

To be returned by the operator of the facility to State Pollution Control Board/Committee after treatment and disposal of wastes.

Copy 6 (blue)

To be returned by the operator of the facility to the occupier after treatment and disposal of hazardous materials/wastes.

(2)

The occupier shall forward copy 1 (white) to the State Pollution Control Board, and in case the hazardous wastes is likely to be transported through any transit State, the occupier shall prepare an additional copy each for intimation to such State and forward the same to the concerned State Pollution Control Board before he hands over the hazardous wastes to the transporter.

(3)

No transporter shall accept hazardous wastes from an occupier for transport unless it is accompanied by copies 3 to 6 of the manifest.

(4)

The transporter shall submit copies 3 to 6 of the manifest duly signed with date to the operator of the facility along with the waste consignment.

(5)

Operator of the facility upon completion of treatment and disposal operations of the hazardous wastes shall forward copy 5 (green) to the State Pollution Control Board and copy 6 (blue) to the occupier and the copy 3 (pink) shall be retained by the operator of the facility.

Chapter VII

Miscellaneous

22.

Records and returns.-

(1)

The occupier generating hazardous wastes and operator of the facility for disposal of hazardous waste shall maintain records of such operations in Form 3.

(2)

The occupier and operator of a facility shall send annual returns to the State Pollution Control Board in Form 4.

(3)

The State Pollution Control Board shall prepare an inventory of the hazardous wastes within its jurisdiction and compile other related information like recycling of the hazardous wastes and treatment and disposal of the hazardous wastes based on the returns filed by respective occupier and operator of the facility.

23.

Responsibility of authorities.-

The Authority specified in column 2 of the Schedule VII shall perform the duties as specified in column 3 of the Schedule subject to the provisions of these rules.

24.

Accident reporting and follow-up.-

Where an accident occurs at the facility or on a hazardous waste site or during transportation of the hazardous waste, the occupier or operator of the facility or the transporter, as the case may be, shall report immediately to the State Pollution Control Board about the accident in Form 14.

25.

Liability of occupier, transporter, operator of a facility and importer.-

(1)

The occupier, importer, transporter and operator of the facility shall be liable for all damages caused to the environment or third party due to improper handling of the hazardous wastes or disposal of the hazardous wastes.

(2)

The occupier and the operator of the facility shall be liable to pay financial penalties as levied for any violation of the provisions under these rules by the State Pollution Control Board with the prior approval of the Central Pollution Control Board.

26.

Appeal.-

(1)

Any person aggrieved by an order of suspension or cancellation or refusal of authorisation or its renewal passed by the State Pollution Control Board, may, within a period of thirty days from the date on which the order is communicated to him, prefer an appeal in Form 15 to the Appellate Authority comprising of the Environment Secretary of the State.

(2)

Any person aggrieved by an order of suspension or cancellation or refusal of registration or its renewal passed by the Central Pollution Control Board, may, within a period of thirty days from the date on which the order is communicated to him, prefer an appeal in Form 15 to the Appellate Authority comprising of the Secretary, to the Government of India in

the Ministry of Environment and Forests.

(3)

The Appellate Authority may entertain the appeal after the expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(4)

Every appeal' filed under this rule shall be disposed of within a period of sixty days from the date of its filing.

I

[See rule 3(1)]

LIST OF PROCESSES GENERATING HAZARDOUS WASTES

.No.

Processes

Hazardous Waste *

1.

Petrochemical processes and pyrolytic operations

1.1 Furnace/reactor residue and debris

1.2 Tarry residues

1.3 Oily sludge emulsion

1.4 Organic residues

1.5 Residues from alkali wash of fuels

1.6 Still bottoms from distillation process

1.7 Spent catalyst and molecular sieves

1.8 Slop oil from wastewater

2.

Drilling operation for oil and gas production

2.1 Drill cuttings containing oil

2.2 Sludge containing oil

2.3 Drilling mud and other drilling wastes

3.

Cleaning, emptying and maintenance of petroleum oil storage tanks including ships

3.1 Oil-containing cargo residue, washing water and sludge

3.2 Chemical-containing cargo residue and sludge

3.3 Sludge and filters contaminated with oil

3.4 Ballast water containing oil from ships.

4.

Petroleum refining/re-processing of used oil/recycling of waste oil

4.1 Oily sludge/emulsion

4.2 Spent catalyst.

4.3 Slop oil

4.4 Organic residues from process

4.5 Spent clay containing oil

5.

Industrial operations using mineral/synthetic oil as lubricant in hydraulic systems or other applications

5.1 Used/spent oil

5.2 Wastes/residues containing oil

6.

Secondary production and/or industrial use of zinc

6.1 Sludge and filter press cake arising out of production of Zinc Sulphate and other Zinc Compounds.

6.2 Zinc fines/dust/ash/skimmings (dispersible form)

6.3 Other residues from processing of zinc ash/skimmings

6.4 Flue gas dust and other particulates

7.

Primary production of zinc/lead/copper and other non-ferrous metals except aluminium

7.1 Flue gas dust from roasting

7.2 Process residues

7.3 Arsenic-bearing sludge

7.4 Nonferrous metal bearing sludge and residue.

7.5 Sludge from scrubbers

8.

Secondary production of copper

8.1 Spent electrolytic solutions

8.2 Sludges and filter cakes

8.3 Flue gas dust and other particulates

9.

Secondary production of lead

9.1 Lead bearing residues

9.2 Lead ash/particulate from flue gas

10.

Production and/or industrial use of cadmium and arsenic and their compounds

10.1 Residues containing cadmium and arsenic

11.

Production of primary and secondary aluminium

11.1. Sludges from off-gas treatment

11.2. Cathode residues including pot lining wastes

11.3. Tar containing wastes

11.4. Flue gas dust and other particulates

11.5. Wastes from treatment of salt slags and black drosses

12.

Metal surface treatment, such as etching, staining, polishing, galvanising, cleaning, degreasing, plating, etc.

12.1 Acid residues

12.2 Alkali residues

12.3 Spent bath/sludge containing sulphide, cyanide and toxic metals

12.4 Sludge from bath containing organic solvents

12.5 Phosphate sludge

12.6 Sludge From staining bath

12.7 Copper etching residues

12.8 Plating metal sludge

13.

Production of iron and steel including other ferrous alloys (electric furnaces; steel rolling and finishing mills; Coke oven and by product plant)

13.1 Sludge from acid recovery unit

13.2 Benzol acid sludge

13.3 Decanter tank tar sludge

13.4 Tar storage tank residue

14.

Hardening of steel

14.1 Cyanide-, nitrate-, or nitrite-containing sludge

14.2 Spent hardening salt

15.

Production of asbestos or asbestos-containing materials

15.1 Asbestos-containing residues

15.2 Discarded asbestos

15.3 Dust/particulates from exhaust gas treatment

16.

Production of caustic soda and chlorine

16.1 Mercury bearing sludge.

16.2 Residue/sludges and filter cakes

16.3 Brine sludge containing mercury

17.

Production of mineral acids

17.1 Residues, dusts or filter cakes

17.2 Spent catalyst

18.

Production of nitrogenous and complex fertilizers

18.1 Spent catalyst

18.2 Spent carbon

18.3 Sludge/residue containing arsenic

18.4 Chromium sludge from water cooling tower

19.

Production of phenol

19.1 Residue/sludge containing phenol

20.

Production and/or industrial use of solvents

20.1 Contaminated aromatic, aliphatic or napthenic solvents may or may not be fit for reuse.

20.2 Spent solvents

20.3 Distillation residues

21.

Production and/or industrial use of paints, pigments, lacquers, varnishes, plastics and inks

21.1 Process wastes, residues & sludges

21.2 Fillers residues

22.

Production of plastic raw materials

22.1 Residues of additives used in plastics manufacture like dyestuffs, stabilizers, flame retardants, etc.

22.2 Residues and waste of plasticisers

22.3 Residues from vinylchloride monomer production

22.4 Residues from acrylonitrile production

22.5 Non-polymerised residues

23.

Production and/or industrial use of glues, cements, adhesive and resins

23.1 Wastes/residues (not made with vegetable or animal materials)

24.

Production of canvas and textiles

24.1 Chemical residues

25.

Industrial production and formulation of wood preservatives

25.1 Chemical residues

25.2 Residues from wood alkali bath

26.

Production or industrial use of synthetic dyes, dye-intermediates and pigments

26.1 Process waste sludge/residues containing acid or other toxic metals or organic complexes

26.2 Dust from air filtration system

27.

Production of organo-silicone compounds

27.1 process residues

28.

Production/formulation of drugs/ pharmaceuticals & health care product

28.1. Process Residues and wastes

28.2 Spent catalyst / spent carbon

28.3 Off specification products

28.4 Date-expired, discarded and off-specification drugs/
medicines

28.5. Spent organic solvents

29.

Production, and formulation of pesticides including stock-piles

29.1 Process wastes/residues

29.2 Chemical sludge containing residue pesticides

29.3 Date-expired and off-specification pesticides

30.

Leather tanneries

30.1 Chromium bearing residues and sludges

31

Electronic Industry

31.1 Process residues and wastes

31.2 Spent etching chemicals and solvents

32.

Pulp & Paper Industry

32.1 Spent chemicals

32.2 Corrosive wastes arising from use of strong acid and bases

32.3 Process sludge containing adsorbable organic halides [AOx]

33.

Disposal of barrels / containers used for handling of hazardous wastes / chemicals

33.1 Chemical-containing residue arising from decontamination.

33.2 Sludge from treatment of waste water arising out of cleaning / disposal of barrels / containers

33.3 Discarded containers / barrels / liners contaminated with hazardous wastes/chemicals

34.

Purification and treatment of exhaust air, water & waste water from the processes in this schedule and common industrial effluent treatment plants (CETP's)

34.1 Flue gas cleaning residue

34.2 Spent ion exchange resin containing toxic metals

34.3 Chemical sludge from waste water treatment

34.4 Oil and grease skimming residues

34.5 Chromium sludge from cooling water

35.

Purification process for organic compounds/solvents

35.1 Filters and filter material which have organic liquids in them, e.g. mineral oil, synthetic oil and organic chlorine compounds

35.2 Spent catalyst

35.3 Spent carbon

36.

Hazardous waste treatment processes, e.g. incineration, distillation, separation and concentration techniques

36.1 Sludge from wet scrubbers

36.2 Ash from incineration of hazardous waste, flue gas cleaning residues

36.3 Spent acid from batteries

36.4 Distillation residues from contaminated organic solv

* The inclusion of wastes contained in this Schedule does not preclude the use of Schedule 2 to demonstrate that the waste is not hazardous. In case of dispute, the matter would be referred to the Technical Review Committee constituted by MoEF.

Note: The high volume low effect wastes such as fly ash, phosphogypsum, red mud, slags from pyrometallurgical operations, mine tailings and ore beneficiation rejects are excluded from the category of hazardous wastes. Separate guidelines on the management of these wastes shall be issued by CPCB.

II

[See rule 3(l)]

List of Waste Constituents with Concentration Limits*

Class A

Concentration limit: 50 mg/kg

- A1 Antimony and antimony compounds
- A2 Arsenic and arsenic compounds
- A3 Beryllium and beryllium compounds
- A4 Cadmium and cadmium compounds
- A5 Chromium (VI) compounds
- A6 Mercury and mercury compounds
- A7 Selenium and selenium compounds
- A8 Tellurium and tellurium compounds
- A9 Thallium and thallium compounds
- A10 Inorganic cyanide compounds
- A11 Metal carbonyls
- A12 Napthalene
- A13 Anthracene
- A14 Phenanthrene
- A15 Chrysene, benzo (a) anthracene, fluoranthene, benzo (a) pyrene, benzo (K) fluoranthene, indeno (1, 2, 3-cd) pyrene and benzo (ghi) perylene
- A16 halogenated compounds of aromatic rings, e.g. polychlorinated biphenyls, polychloroterphenyls and their derivatives
- A17 Halogenated aromatic compounds
- A18 Benzene
- A19 Organo-chlorine pesticides
- A20 Organo-tin Compounds

CLASS B

Concentration limit: 5000 mg/kg

- B1 Chromium (III) compounds
- B2 Cobalt compounds
- B3 Copper compounds
- B4 Lead and lead compounds
- B5 Molybdenum compounds
- B6 Nickel compounds
- B7 Inorganic Tin compounds
- B8 Vanadium compounds
- B9 Tungsten compounds
- B10 Silver compounds
- B11 Halogenated aliphatic compounds
- B12 Organo phosphorus compounds
- B13 Organic peroxides
- B14 Organic nitro-and nitroso-compounds
- B15 Organic azo-and azoxy compounds
- B16 Nitriles

- B17 Amines
- B18 (Iso-and thio-) cyanates
- B19 Phenol and phenolic compounds
- B20 Mercaptans
- B21 Asbestos
- B22 Halogen-silanes
- B23 Hydrazine (s)
- B24 Flourine
- B25 Chlorine
- B26 Bromine
- B27 White and red phosphorus
- B28 Ferro-silicate and alloys
- B29 Manganese-silicate
- B30 Halogen-containing compounds which produce acidic vapours on contact with humid air or water, e.g. silicon tetrachloride, aluminium chloride, titanium tetrachloride

Class C

Concentration limit; 20, 000 mg/kg

- C1 Ammonia and ammonium compounds
- C2 Inorganic peroxides
- C3 Barium compounds except barium sulphate
- C4 Fluorine compounds
- C5 Phosphate compounds except phosphates of aluminium, calcium and iron
- C6 Bromates, (hypo-bromites)
- C7 Chlorates, (hypo-chlorites)
- C8 Aromatic compounds other than those listed under A12 to A18
- C9 Organic silicone compounds
- C10 Organic sulphur compounds
- C11 Iodates
- C12 Nitrates, nitrites
- C13 Sulphides
- C14 Zinc compounds
- C15 Salts of per-acids
- C16 Acid amides
- C17 Acid anhydrides

Class D

Concentration limit: 50, 000 mg/kg

- D1 Total Sulphur
- D2 Inorganic acids
- D3 Metal hydrogen sulphates
- D4 Oxides and hydroxides except those of hydrogen, carbon, silicon, iron, aluminum, titanium, manganese, magnesium, calcium
- D5 Total hydrocarbons other than those listed under A12 to A18
- D6 Organic oxygen compounds
- D7 Organic nitrogen compounds expressed as nitrogen
- D8 Nitrides
- D9 Hydrides

Class E

Regardless of concentration limit, Classified as hazardous wastes if the waste exhibits any of the following Characteristics.

- E1

Flammable

Flammable wastes with flash point 65.60C of below.

E2

Explosive

Wastes which may explode under the effect of flame, heat or photochemical conditions. Any other waste of explosive materials included in the Indian Explosive Act.

E3

Corrosive

Wastes which may be corrosive, by chemical action, will cause severe damage when in contact with living tissue.

E4

Toxic

Wastes containing or contaminated with established toxic and or ecotoxic constituents.

E5

Carcinogenicity, Mutagenicity and Endocrine disruptivity Wastes contaminated or containing established carcinogens, mutagens and endocrine disruptors.

*Waste constituents and their concentration limits given in this list are based on erstwhile BAGA (the Netherlands Environment Protection Agency) List of Hazardous Substances. In order to decide whether specific wastes listed above is hazardous or not, following points be taken into consideration:

(i)

.If a component of the waste appears in one of the five risk classes listed above (A,B,C,D or E) and the concentration of the component is equal to or more than the limit for the relevant risks class, the material is then classified as hazardous waste.

(ii)

.If a chemical compound containing a hazardous constituent is present in the waste, the concentration limit does not apply to the compound, but only to the hazardous constituent itself.

(iii)

.If multiple hazardous constituents from the same class are present in the waste, the concentrations are added together.

(iv)

.If multiple hazardous constituents from different classes are present in the waste, the lowest concentration limit corresponding to the constituent(s) applies.

(v)

For determining the concentration of the hazardous constituents in the waste "Toxicity Characteristics Leaching Procedure (TCLP) as per ASTM-D5233-92 should be adopted.

III

[See rules 3(1), 14(1), 14(2)(i), (iii) and 15(1)]

Part A ? LIST OF HAZARDOUS WASTES APPLICABLE FOR IMPROT WITH PRIOR INFORMED CONSENT

[Annexure VIII of the Basel Convention*]

Basel No.

Description of Hazardous Wastes

A1

Metal and Metal bearing wastes

A1010

Metal wastes and waste consisting of alloys of any of the following

- Antimony
- Cadmium
- Tellurium
- Lead

A1020

Waste having as constituents or contaminants, excluding metal wastes in massive form as listed in B1020, any of the following:

- Cadmium, cadmium compounds.

- Antimony, antimony compounds.
- Tellurium, tellurium compounds.
- Lead, lead compounds.

A1040

Wastes having metal carbonyls as constituents

A1050

Galvanic sludges

A1060

Wastes Liquors from the pickling of metals.

A1070

Leaching residues from zinc processing, dusts and sludges such as jarosite, hematite etc.,

A1080

Waste Zinc residues not included on list B containing lead and cadmium in concentrations sufficient to exhibit hazard characteristics indicated in Part C of Schedule - 3

A1090

Ashes from the incineration of insulated copper wire

A1100

Dusts and residues from gas cleaning systems of copper smelters

A1110

Spent electrolytic solutions from copper electrorefining and electrowinning operations

A1120

Waste sludges, excluding anode slimes, from electrolytic purification systems in copper electrorefining and electrowinning operations.

A1130

Spent etching solutions containing dissolved copper.

A1150

Precious metal ash from incineration of printed circuit boards not included in list' B'

A1160

Waste Lead acid batteries whole or crushed.

A1170

Unsorted waste batteries excluding mixtures of List B batteries.

A1180

Waste Electrical and electronic assemblies or scrap containing, components such

A2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

A2010

Activated Glass cullets from cathode ray tubes and other activated glasses

A2030

Waste catalysts but excluding such wastes specified on List B of Schedule 3

A3

Wastes containing principally organic constituents which may contain metals and inorganic materials

A3010

Waste from the production or processing of petroleum coke and bitumen

A3020

Waste mineral oils unfit for their originally intended use

A3050

Wastes from production, formulation and use of resins, latex, plasticisers, glues/adhesives excluding such wastes specified in List B (B4020)

A3070

Waste phenol, phenol compounds including chlorophenol in the form of liquids or sludges

A3080

Waste ethers not including those specified in List B

A3120

Fluff: light fraction from shredding

A3130

Waste organic phosphorus compounds

A3140

Waste non-halogenated organic solvents but excluding such wastes specified on List B

A3160

Waste halogenated or unhalogenated non-aqueous distillation residues arising from organic solvent recovery operations

A3170

Waste arising from the production of aliphatic halogenated hydrocarbons (such as chloromethanes, dichloroethane, vinylchloride, vinylidene chloride, allyl chloride and epichlorhydrin)

A4

Wastes which may contain either inorganic or organic constituents

A4010

Wastes from the production and preparation and use of pharmaceutical products but excluding such wastes specified on List B

A4040

Wastes from the manufacture formulation and use of wood preserving chemicals

A4070

Waste from the production, formulation and use of inks, dyes, pigments, paints, lacquers, varnish excluding those specified in List B (B4010)

A4080

Wastes of an explosive nature excluding such wastes specified on List B

A4090

Waste acidic or basic solutions excluding those specified in List B (B2120)

A4100

Wastes from industrial pollution control devices for cleaning of industrial off-gases excluding such wastes specified on List B

A4120

Wastes that contain, consist of or are contaminated with peroxides.

A4130

Waste packages and containers containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein.

A4140

Waste consisting of or containing off specification or out-dated chemicals containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein.

A4150

Waste chemical substances arising from research and development or teaching activities which are not identified and/or are new and whose effects on human health and/or the environment are not known

A4160

Spent activated carbon not included on List B (B2060)

*This List is based on Annex.VIII of the Basel Convention on Transboundary Movement of Hazardous Wastes and comprises of wastes characterized as hazardous under Article 1, paragraph 1(a) of the Convention. Inclusion of wastes on this list does not preclude the use of hazard characteristics given in Annex.VIII of the Basel Convention (Part C of this Schedule) to demonstrate that the wastes are not hazardous. Certain waste categories listed in the Schedule - 3 (Part-A) have been prohibited for import. Hazardous wastes in the Schedule - 3 (Part -A) are restricted and cannot be allowed to be imported without permission from Ministry of Environment Forests and DGFT license.

Part B

List Of Hazardous Wastes Applicable For Import And Export Not Requiring Prior Informed Consent

[Annexure IX of the Basel Convention*]

Basel No.

Description of Wastes

B1

Metal and metal-bearing wastes

B1010

Metal and metal-alloy wastes in metallic, non-dispersible form:

- Precious metals (gold, silver, platinum)**
- Iron and steel scrap**
- Nickel scrap**
- Aluminum scrap**
- Zinc scrap**
- Tin scrap**
- Tungsten scrap**
- Molybdenum scrap**
- Tantalum scrap**
- Cobalt scrap**
- Bismuth scrap**
- Titanium scrap**
- Zirconium scrap**
- Manganese scrap **
- Germanium scrap**
- Vanadium scrap **
- Hafnium scrap**
- Indium scrap**
- Niobium scrap**
- Rhenium scrap**
- Gallium scrap**
- Magnesium scrap**
- Copper scrap**
- Thorium scrap
- Rare earths scrap
- Chromium scrap**

B1020

Clean, uncontaminated metal scrap, including alloys, in bulk finished form (sheet, plates, beams, rods, etc.) , of:

- Antimony scrap****
- Cadmium scrap
- Lead scrap (excluding lead acid batteries)
- Tellurium scrap****

B1030

Refractory metals containing residues****

B1031

Molybdenum, tungsten, titanium, tantalum, niobium and rhenium metal and metal alloy wastes in metallic dispersible form

(metal powder), excluding such wastes as specified in list A under entry A1050, Galvanic sludges****

B1040

Scrap assemblies from electrical power generation not contaminated with lubricating oil, PCB or PCT to an extent to render them hazardous**

B1050

Mixed non-ferrous metal, heavy fraction scrap, not containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein**

B1060

Waste selenium and tellurium in metallic elemental form including powder****

B1070

Waste of copper and copper alloys in dispersible form, unless they contain any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein***

B1080

Zinc ash and residues including zinc alloys residues in dispersible form unless they contain any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein***

B1090

Waste batteries conforming to a standard battery specification, excluding those made with lead, cadmium or mercury.****

B1100

Metal bearing wastes arising from melting, smelting and refining of metals:

- Hard Zinc Spelter**

- Zinc-containing drosses: **

- ~ Galvanizing slab zinc top dross (90% Zn)

- ~ Galvanizing slab zinc bottom dross (92% Zn)

- ~ Zinc die casting dross

(85% Zn)

- ~ Hot dip galvanizers slab zinc dross (batch) (92% Zn)

- ~ Zinc skimmings (90%Zn)

Slags from copper processing for further processing or refining containing arsenic, lead or cadmium***

- Slags from precious metals processing for further refining**

- Wastes of refractory linings, including crucibles, originating from copper smelting

- Aluminum skimmings (or skims) excluding salt slag**

Tantalum-bearing tin slags with less than 0.5% tin****

B1110

Electrical and electronic assemblies

- Electronic assemblies consisting only of metals or alloys****

- Waste electrical and electronic assemblies scrap (including printed circuit boards) not containing components such as accumulators and other batteries included on list A, mercury-switches, glass from cathode-ray tubes and other activated glass and PCB-capacitors, or not contaminated with constituents such as cadmium, mercury, lead, polychlorinated biphenyl) or from which these have been removed, to an extent that they do not possess any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein ****

- Electrical and electronic assemblies

(including printed circuit boards, electronic components and wires) destined for direct reuse and not for recycling or final disposal.

B1120

Spent catalysts excluding liquids used as catalysts, containing any of:

Transition metals, excluding waste catalysts (spent catalysts, liquid used catalysts or other catalysts) on list A:

Scandium

Vanadium

Manganese

Cobalt

Copper

Yttrium

Niobium

Hafnium

Tungsten

Titanium

Chromium

Iron

Nickel
Zinc
Zirconium
Molybdenum
Tantalum
Rhenium
Lanthanides (rare earth metals):
Lanthanum
Praseodymium
Samarium
Gadolinium
Dysprosium
Erbium
Ytterbium
Cerium
Neodymium
Europium
Terbium
Holmium
Thulium
Lutetium
B1130
Cleaned spent precious metal bearing catalysts
B1140
Precious metal bearing residues in solid form which contain traces of inorganic cyanides
B1150
Precious metals and alloy wastes (gold , silver, the platinum group) in a dispersible form
B1160
Precious-metal ash from the incineration of printed circuit boards (note the related entry on list A A1150)
B1170
Precious metal ash from the incineration of photographic film
B1180
Waste photographic film containing silver halides and metallic silver
B1190
Waste photographic paper containing silver halides and metallic silver
B1200
Granulated slag arising from the manufacture of iron and steel
B1210
Slag arising from the manufacture of iron and steel including slag as a source of Titanium dioxide and Vanadium
B1220
Slag from zinc production, chemically stabilized, having a high iron content (above 20%) and processed according to industrial specifications mainly for construction
B1230
Mill scaling arising from manufacture of iron and steel**
B1240
Copper Oxide mill-scale***
B2
Wastes containing principally inorganic constituents, which may contain metals and organic materials
B2010
Wastes from mining operations in non-dispersible form:
- Natural graphite waste

- Slate wastes
- Mica wastes
- Leucite, nepheline and nepheline syenite waste
- Feldspar waste
- Fluorspar waste
- Silica wastes in solid form excluding those used in foundry operations

B2020

Glass wastes in non-dispersible form:

Glass Cullets and other wastes and scrap of glass except activated glass cullets from cathode ray tubes and other activated glasses

B2030

Ceramic wastes in non-dispersible form:

Cermet wastes and scrap (metal ceramic composites)

- Ceramic based fibres

B2040

Other wastes containing principally inorganic constituents:

- Partially refined calcium sulphate produced from flue gas desulphurisation (FGD)
- Waste gypsum wallboard or plasterboard arising from the demolition of buildings
- Sulphur in solid form
- Limestone from production of calcium cyanamide (pH9)
- Sodium, potassium, calcium chlorides
- Carborundum (silicon carbide)
- Broken concrete
- Lithium tantalum Lillium-niobium containing glass scraps

B2060

Spent activated carbon resulting from the treatment of potable water and processes of the food industry and vitamin production (note the related entry on list A A4160)

B2070

Calcium fluoride sludge

B2080

Waste gypsum arising from chemical industry processes unless it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

B2090

Waste anode butts from steel or aluminium production made of petroleum coke or bitumen and cleaned to normal industry specifications (excluding anode butts from chlor alkali electrolyses and from other metallurgical industry)

B2100

Waste hydrates of aluminum and waste alumina and residues from alumina production, arising from gas cleaning, flocculation or filtration process

B2110

Bauxite residue ("red mud") (pH moderated to less than 11.5)

B2120

Waste acidic or basic solutions with a pH greater than 2 and less than 11.5, which are not corrosive or otherwise hazardous (note the related entry on list A A4090)

B3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

B3010

Solid plastic waste

The following plastic or mixed plastic waste, provided they are not mixed with other wastes and are prepared to a specification:

- Scrap plastic of non-halogenated polymers and copolymers, including but not limited to the following:

Ethylene

Styrene
Polypropylene
polyethylene terephthalate
Acrylonitrile
Butadiene
Polyacetals
Polyamides
polybutylene tere-phthalate
Polycarbonates
Polyethers
polyphenylene sulphides
acrylic polymers
alkanes C10-C13
(plasticiser)
polyurethane (not containing CFC's)
Polysiloxanes
polymethyl methacrylate
polyvinyl alcohol
polyvinyl butyral
Polyvinyl acetate

Cured waste resins or condensation products including the following:

urea formaldehyde resins
phenol formaldehyde resins
melamine formaldehyde resins
epoxy resins
alkyd resins
Polyamides

- The following fluorinated polymer wastes
(excluding post-consumer wastes):

Perfluoroethylene/
propylene
Perfluoroalkoxy alkane
Metafluoroalkoxy alkane
polyvinylfluoride
polyvinylidenefluoride

B3020

[Paper, paperboard and paper product wastes****]

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

The following materials, provided they are not mixed with hazardous wastes:

Waste and scrap of paper or paperboard of:

unbleached paper or paperboard or of corrugated paper or paperboard
other paper or paperboard, made mainly of bleached chemical pulp, not coloured in the mass
paper or paperboard made mainly of mechanical pulp (for example, newspapers, journals and similar printed matter)
other, including but not limited to 1) laminated paperboard 2) unsorted scrap.

B3130

Waste polymer ethers and waste non-hazardous monomer ethers incapable of forming peroxides

B3140

Waste pneumatic tyres, excluding those which do not lead to resource recovery, recycling, reclamation or direct reuse

B4

Wastes which may contain either inorganic or organic constituents

B4010

Wastes consisting mainly of water-based/latex paints, inks and hardened

* This List is based on Annex. IX of the Basel Convention on Transboundary Movement of Hazardous Wastes and comprises of wastes not characterized as hazardous under Article - I of the Basel Convention.

[** Import permitted in the country without any license or restriction.]

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

*** Import permitted in the country for recycling/reprocessing by units registered with MoEF/CPCB and having DGFT license .

**** Import permitted in the country by the actual users with MoEF permission and DGFT license.

All other wastes listed in this Schedule -3 (Par - B) having no ` Star/s'(*)... can only be imported in to the country with the permission of MoEF.

Note:

(1)

Copper dross containing copper greater than 65% and lead and cadmium equal to or less than 1.25% and 0.1% respectively; spent cleaned metal catalyst containing copper; and Copper reverts, cake and residues containing lead and cadmium equal to or less than 1.25% and 0.1% respectively are allowed for import without DGFT licence to units (actual users) registered with MoEF upto an annual quantity limit indicated in the Registration letter. Copper reverts, cake and residues containing lead and cadmium greater than 1.25% and 0.1% respectively are under restricted category for which import is permitted only against DGFT licence for the purpose of processing or reuse by units registered with MoEF (actual users).

(2)

Zinc ash/skimmings in dispersible form containing zinc more than 65% and lead and cadmium equal to or less than 1.25% and 0.1% respectively and spent cleaned metal catalyst containing zinc are allowed for import without DGFT licence to units registered with MoEF (actual users) upto an annual quantity limit indicated in Registration Letter. Zinc ash and skimmings containing less than 65% zinc and lead and cadmium equal to or more than 1.25% and 0.1% respectively and hard zinc spelter and brass dross containing lead greater than 1.25% are under restricted category for which import is permitted against DGFT licence and only for purpose of processing or reuse by units registered with MoEF (actual users).

Part C

List Of Hazardous Characteristic

Code

Characteristic

H 1

Explosive

An explosive substance or waste is a solid or liquid substance or waste (or mixture of substances or wastes) which is in itself capable by chemical reaction of producing gas at such a temperature and pressure and at such speed as to cause damage to the surroundings (UN Class 1; H1)

H 3

Flammable Liquids

The word "flammable" has the same meaning as "inflammable". Flammable liquids are liquids, or mixtures of liquids, or liquids containing solids in solution or suspension

(for example, paints, varnishes, lacquers, etc. but not including substances or wastes otherwise classified on account of their dangerous characteristics) which give off a flammable vapour at temperatures of not more than 60.5°C, closed-cup test, or not more than 65.5°C, open-cup test. (Since the results of open-cup tests and of closed-cup tests are not strictly comparable and even individual results by the same test are often variable, regulations varying from the above figures to make allowance for such differences would be within the spirit of this definition).

H 4.1

Flammable Solids

Solids, or waste solids, other than those classed as explosives, which under conditions encountered in transport are readily combustible, or may cause or contribute to fire through friction.

H 4.2.

Substances or wastes liable to spontaneous combustion

Substances or wastes which are liable to spontaneous heating under normal conditions encountered in transport, or to heating up on contact with air, and being then liable to catch fire.

H 4.3

Substances or wastes which in contact with water emit flammable gases

Substances or wastes which, by interaction with water, are liable to become spontaneously flammable or to give off flammable gases in dangerous quantities.

H 5.1

Oxidizing

Substances or wastes which, while in themselves not necessarily combustible, may, generally by yielding oxygen cause, or contribute to, the combustion of other materials.

H 5.2

Organic Peroxides

Organic substances or wastes which contain the bivalent-O-O- structure are thermally unstable substances which may undergo exothermic self-accelerating decomposition.

H 6.1

Poisons (Acute)

Substances or wastes liable either to cause death or serious injury or to harm health if swallowed or inhaled or by skin contact.

H 6.2

Infectious substances

Substances or wastes containing viable micro organisms or their toxins which are known or suspected to cause disease in animals or humans.

H 8

Corrosives

Substances or wastes which, by chemical action, will cause severe damage when in contact with living tissue, or, in the case of leakage, will materially damage, or even destroy, other goods or the means of transport; they may also cause other hazards.

H 10

Liberation of toxic gases in contact with air or water

Substances or wastes which, by interaction with air or water, are liable to give off toxic gases in dangerous quantities.

H 11

Toxic (Delayed or chronic)

Substances or wastes which, if they are inhaled or ingested or if they penetrate the skin, may involve delayed or chronic effects, including carcinogenicity).

H 12

Ecotoxic

Substances or wastes which if released present or may present immediate or delayed adverse impacts to the environment by means of bioaccumulation and/or toxic effects upon biotic systems.

H 13

Capable by any means, after disposal, of yielding another material, e.g., Leachate, which possesses any of the characteristics listed above.

IV

[See rules 8(1) and 9]

LIST OF HAZARDOUS WASTES REQUIRING REGISTRATION FOR RECYCLING/REPROCESSING

Sl.No

Wastes

1

Brass Dross

2

Copper Dross

3

Copper Oxide mill scale

4

Copper reverts, cake and residue

5

Waste Copper and copper alloys in dispersible form.

6

Slags from copper processing for further processing or refining

7

Insulated Copper Wire Scrap/copper with PVC sheathing including ISRI-code material namely

"Druid"

8

Jelly filled copper cables

9

Spent cleared metal catalyst containing copper

10

Spent catalyst containing nickel, cadmium, zinc, copper, arsenic, vanadium

11

Zinc Dross-Hot dip Galvanizers SLAB

12

Zinc Dross-Bottom Dross

13

Zinc ash/skimmings arising from galvanizing and die casting operations

14

Zinc ash/skimming/other zinc bearing wastes arising from smelting and refining

15

Zinc ash and residues including zinc alloy residues in dispersible form

16

Spent cleared metal catalyst containing zinc

17

Lead acid battery plates and other lead scrap/ashes/residues not covered under Batteries (Management and Handling) Rules, 2001.

[*Battery scrap, namely: Lead battery plates covered by ISRI, Code word "Rails" Battery lugs covered by ISRI, Code word "Rakes". Scrap drained/dry while intact, lead batteries covered by ISRI, Code word "Rains".

18

Components of waste electrical and electronic assemblies comprising accumulators and other batteries included on list A, mercury-switches, activated glass cullets from cathode-ray tubes and other activated glass and PCB-capacitors, or any other component contaminated with Schedule 2 constituents (e.g. cadmium, mercury, lead, polychlorinated biphenyl) to an extent that they exhibit hazard characteristics indicated in part C of this Schedule.

19

Paint and ink Sludge/residues

20

Used Oil and Waste Oil -

As per specifications prescribed from time to time .

V

[See rule 3(ze) and (zf)]

Part A ? SPECIFICATIONS OF USED OIL SUITABLE FOR REPROCESSING/RECYCLING

Sl.No

Parameter

Maximum permissible Limits

(1)

(2)

(3)

1.

Polychlorinated biphenyls is (PCBs)

2 ppm*

2.

Lead

100ppm

3.

Arsenic

5ppm

4.

Cadmium + Chromium

+Nickel

500 ppm

5.

Polyaromatic hydrocarbons (PAH)

6%

PART B

SPECIFICATIONS OF FUEL DERIVED FROM WASTE OIL

Sl.No.

Parameter

Maximum permissible Limits

(1)

(2)

(3)

1.

Sediment

0.25%

2.

Lead

100ppm

3.

Arsenic

5ppm

4.

Cadmium+Chromium+Nickel

500ppm

5.

Polyaromatic hydrocarbons (PAH)

6%

6.

Total halogens

4000 ppm

7.

Polychlorinated biphenyls (PCBs)

2 ppm*

8.

Sulphur

4.5%

9.

Water content

1%

VI

[See rule 13(4)]

Hazardous Wastes Prohibited for Import and Export

S.No.

Basel No

Description of Hazardous Wastes

1.

A1010

Mercury bearing wastes

2.

A1030

Waste having Mercury: Mercury Compounds as constituents or contaminants

3.

A1010

Beryllium bearing wastes

4.

A1020

Waste having Beryllium: Beryllium Compounds as constituents or contaminants

5.

A1010

Arsenic bearing wastes

6.

A1030

Waste having Arsenic: Arsenic compounds as constituents or contaminants

7.

A1010

Selenium bearing wastes

8.

A1020

Waste having Selenium; Selenium Compounds as constituents or contaminants

9.

A1010

Thallium bearing wastes

10.

A1030

Waste having Thallium; Thallium Compounds as constituents or contaminants

11.

A1040

Hexavalent Chromium Compounds bearing wastes

12.

A1140

Wastes Cupric Chloride and Copper Cyanide Catalysts bearing wastes

13

A1190

Waste metal cables coated or insulated with plastics containing or contaminated with coal tar, PCB", lead, cadmium, other organohalogen compounds or other constituents as mentioned in schedule 2 to the extent of concentration limits specified therein.

14.

A2020

Waste inorganic fluorine compounds in the form of liquids or sludge but excluding calcium fluoride sludge

15.

A2040

Waste gypsum arising from chemical industry processes if it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

16.

A2050

Waste Asbestos (Dust and Fibres)

17.

A3030

Wastes that consist of or are contaminated with leaded anti-knock compound sludge or leaded petrol (gasoline) sludges.

18.

A3040

Waste Thermal (heat transfer) fluids

19.

A3060

Waste Nitrocellulose

20.

A3090

Waste Leather dust, ash, sludges or flours when containing hexavalent chromium compounds or biocides

21.

A3100

Waste paring and other wastes of leather or of composition leather not suitable for the manufacture of leather articles, containing hexavalent chromium compounds and biocides

22.

A3110

Fellmongery wastes containing hexavalent chromium compounds or biocides or infectious substances

23.

A3150

Halogenated organic solvents

24.

A3180

Waste, Substances and articles containing, consisting of or contaminated with polychlorinated biphenyles (PCB) and/or polychlorinated terphenyls, (PCT) and/or polychlorinated naphthalenes (PCN) and/or polybrominated biphenyles (PBB) or any other polybrominated analogues of these compounds

25.

A3190

Waste tarry residues (excluding asphalt cements) arising from refining, distillation and pyrolytic treatment of organic materials)

26.

A4020

Clinical and related wastes; that is wastes arising from medical, nursing, dental, veterinary, or similar practices and wastes generated in hospital or other facilities during the investigation or treatment of patients, or research projects.

27.

A4030

Waste from the production, formulation and use of biocides and phyto-pharmaceuticals, including waste pesticides and herbicides which are off-specification, out-dated, and/or unfit for their originally intended use.

28.

A4050

Waste that contain, consist of, or are contaminated with any of the following; Inorganic cyanides, excepting precious metal bearing residues in solid form containing traces of inorganic cyanides. Organic cyanides

29.

A4060

Waste oil/water, hydrocarbons/water mixtures, emulsions

30.

A4110

Wastes that contain, consist of or are contaminated with any of the following :

- Any congener of polychlorinated dibenzofuran.
- Any congener of polychlorinated dibenzo-dioxin.

VII

(See rule 23)

LIST OF AUTHORITIES AND CORRESPONDING DUTIES

Sl.No.

Authority

Corresponding Duties

1.

Ministry of Environment and Forests under the Environment (Protection) Act, 1986

- (i) Identification of hazardous wastes
- (ii) Permission to exporters of hazardous wastes
- (iii) Permission to importers of hazardous wastes
- (iv) Permission for transit of hazardous wastes
- (v) Sponsoring of Training and Awareness programme on Hazardous Waste Management related activities.

2.

Central Pollution Control Board constituted under the Water

(Prevention and Control of Pollution) Act, 1974

- (i) Co-ordination of activities of State Pollution Control Boards/Committees.
- (ii) Conduct training courses for authorities dealing with management of hazardous wastes.
- (iii) Recommend standards and specifications for treatment and disposal of wastes and leachates. Recommend procedures for characterization of hazardous wastes.
- (iv) Sector specific documentation to identify waste for inclusion in Hazardous Wastes (Management, Handling and Transboundary Movement) Rules, 2008
- (v) Prepare guidelines to prevent/reduce/minimize the generation and handling of hazardous wastes
- (vi) Registration and renewal of registration of Recyclers/Re-processors
- (vii) Any other function under rules delegated by the Ministry of Environment and Forests.

3.

State Government/Union Territory Government/Administration

- (i) Identification of site(S) for common Hazardous Waste Treatment Storage and Disposal Facility (TSDF)
- (ii) Assess EIA reports and convey the decision of approval of site or otherwise.
- (iii) Acquire the site or inform operator of facility or occupier or association of occupiers to acquire the site.
- (iv) Notification of sites
- (v) Publish periodically an inventory of all disposal sites in the State/Union Territory

4.

State Pollution Control Boards or Pollution Control Committees constituted under the Water (Prevention and Control of Pollution) Act, 1974

- (i) Inventorisation of hazardous wastes
- (ii) Grant and renewal of authorization.
- (iii) Monitoring of compliance of various provisions and conditions of authorization including conditions of permission for issued by MoEF exports and imports.
- (iv) Examining the applications for imports submitted by the importers and forwarding the same to Ministry of Environment and Forests.
- (v) Implementation of programmes to prevent/reduce/minimize the generation of hazardous wastes
- (vi) Action against violations of Hazardous Wastes (Management, Handling and Transboundary Movement) Rules, 2008.

(vii) Any other function under these rules assigned by MoEF from time to time

5.

Directorate General of Foreign Trade constituted under the Foreign Trade (Development and Regulation) Act, 1992

(i) Grant of licence for import of hazardous wastes.

(ii) Refusal of licence for hazardous wastes prohibited for imports and export.

6.

Port Authority under Indian Ports Act, 1908 (

15 of 1908

) and Customs Authority under the Customs Act, 1962 (

52 of 1962

)

(i) Verify the document

(ii) Inform the Ministry of Environment and Forests of any illegal traffic.

(iii) Analyse wastes permitted for imports and exports.

(iv) Train officials on the provisions of the Hazardous Wastes

(Management), Handling and Transboundary Movement) Rules, 2008 and in the analysis of hazardous wastes.

(v) Take action against exporter/importer for violations under the Indian Ports Act, 1908/Customs Act, 1962

FORM 1

[See Rules 5(3) and (7)]

Application for Obtaining Authorisation for Collector/Reception/Treatment/Transport/Storage/Disposal of Hazardous Waste*

To :

The Member Secretary

Pollution Control Board/.....Pollution Control Committee,

.....

Sir,

I/We hereby apply for authorization / renewal of authorization under sub-rule (3) of Rule 5 of the Hazardous Waste (Management, Handling and Transboundary Movement) Rules, 2008 for collection/ reception/ treatment/ transport/ storage/ disposal of hazardous wastes.

For Office Use Only

1.

Code no.

2.

Whether the unit is situated in a critically polluted area as identified by Ministry of Environment and Forests:

TO BE FILLED IN BY APPLICANT

Part A ? GENERAL {}

| -

| 3.

| (a) Name and address of the unit/ Location of activity:

|

| -

| (b)

| Authorization required for (Please tick mark appropriate activity/ activities)

|

| -

| (i)

| Collection

|

| -

| (ii)

| Reception

- |
- | -
- | (iii)
- | Treatment
- |
- | -
- | (iv)
- | Transport
- |
- | -
- | (v)
- | Storage
- |
- | -
- | (vi)
- | Disposal
- |
- | -
- | (c)
- | In case of renewal of authorization, previous authorization number and date
- |
- | -
- | 4(a)
- | Whether the unit is generating Hazardous waste as defined in these Rules
- |
- | -
- | (b)
- | If so, the type and quantity of wastes (in Tonnes / KL)
- |
- | -
- | 5 (a)
- | Total capital investment of the project (in Rupees)
- |
- | -
- | (b)
- | Year of commencement of production
- |
- | -
- | (c)
- | Whether the industry works general / 2 shifts/ round the clock
- |
- | -
- | 6 (a)
- | List and quantum of products and byproducts (in Tonnes /KL)
- |
- | -
- | (b)
- | List and quantum of raw materials used (in Tonnes / KL)
- |
- | -
- | 7.

| Furnish a flow diagram of manufacturing Process showing input and output in terms of Products, waste generated including for captive power generation and demineralised water

|

|}

Part B ? HAZARDOUS WASTE {|

|-

| 8

(a)

| Type of Hazardous wastes generated as defined under these Rules

|

|-

| (b)

| Quantum of hazardous waste generated

|

|-

| (c)

| Sources and waste characteristics (Also indicate wastes amenable to recycling, reprocessing and reuse)

|

|-

| (d)

| Mode of storage within the plant, method of disposal and capacity (provide details)

|

|-

| 9

| Hazardous wastes generated as per these Rules from storage of hazardous chemicals as defined under the Manufacture, Storage and Import of Hazardous Chemical Rules, 1989

|

|}

Part C ? TREATMENT, STORAGE AND DISPOSAL FACILITY {|

|-

| 10

| Detailed proposal of the facility (to be attached) to include

|

|-

| (i)

| Location of site (provide map)

|

|-

| (ii)

| Name of waste processing technology

|

|-

| (iii)

| Details of processing technology

|

|-

| (iv)

| Type and Quantity of waste processed per day

|

|-

| (v)

| Site clearance (from local authority, if any)

|

| -

| (vi)

| Utilization programme for waste processed (Product Utilization)

|

| -

| (vii)

| Method of disposal (details in brief be given)

|

| -

| (viii)

| Quantity of waste to be disposed per day

|

| -

| (ix)

| Nature and composition of waste

|

| -

| (x)

| Methodology and operational details of land filling / incineration

|

| -

| (xi)

| Measures to be taken for prevention and control of environmental pollution including treatment of leachates

|

| -

| (xii)

| Investment on Project and expected returns

|

| -

| (xiii)

| Measures to be taken for safety to workers working in the plant

|

| }

Place.....

Date.....

Signature.....

Designation.....

FORM 2

[See rule 5(4)]

Form For Grant/renewal Of Authorisation By Spcb/pcc For Occupiers, Reprocessors, Reusers And Operators Of Facilities For Collection, Reception, Treatment, Storage, Transport, And Disposal Of Hazardous Waste

1. Number of authorisation and date of issue :

2.of..... is hereby granted an authorisation to operate a facility for collection, reception, treatment, storage, transport and disposal of hazardous waste on the premises situated at

3. The authorisation granted to operate a facility for generation, collection, reception, treatment, storage, transport and disposal of hazardous wastes.

4. The authorisation shall be in force for a period of.....

5. The authorisation is subject to the conditions stated below and the such conditions as may be specified in the rules for

the time being in force under the Environment (Protection) Act, 1986.

Date

Authority

.....

.....

Signature of Issuing

Designation and Seal

Terms and conditions of authorisation

1. The authorisation shall comply with the provisions of the Environment (Protection) Act, 1986, and the rules made there under.
2. The authorisation or its renewal shall be produced for inspection at the request of an officer authorised by the SPCB/PCC.
3. The person authorised shall not lent, lend, sell, transfer or otherwise transport the hazardous wastes without obtaining prior permission of the SPCB/PCC.
4. Any unauthorized change in personnel, equipment as working conditions as mentioned in the application by the person authorised shall constitute a breach of his authorisation.
5. It is the duty of the authorised person to take prior permission of the SPCB/PCC to close down the facility.
6. An application for the renewal of an authorisation shall be made as laid down under these Rules.
7. Any other conditions for compliance as per the Guidelines issued by the MoEF or CPCB.

FORM 3

[See rule 5 (6), and 22 (1)]

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

FORMAT FOR MAINTAINING RECORDS OF HAZARDOUS WASTES BY THE OCCUPIER OR OPERATOR OF A FACILITY

1. Name and address of the occupier or operator of a facility :
2. Date of issuance of authorisation and its reference number :
3. Description of hazardous waste :

Physical form with description

Chemical form

Total volume (m³) and weight (in kg.)

4. Description of storage and treatment of hazardous waste :

Date

Method of storage of hazardous wastes

Date

Method of treatment of hazardous wastes

5. Details of transportation of hazardous waste :

Name and address of the consignee of package

Mode of packing of the waste for transportation

Mode of transportation to site of disposal

Date of transportation

6. Details of disposal of hazardous waste :

Date of disposal

Concentration of hazardous constituents in the final waste form

Site of disposal

(identify the location on the relevant layout drawing for reference)

Method of disposal

Persons involved in disposal

7. Data on environmental surveillance:

Date of measurement

Analysis of ground water

Analysis of soil samples

Analysis of air samples

Analysis of any other samples (Give details)

Location of sampling

Depth of sampling

Data

Location of sampling

Depth of sampling

Data

Location of sampling

Data

8. Details of hazardous waste sold/auctioned to the recyclers or reprocessors or re-users:

9. Details of hazardous waste reused or recycled:

Date

Total Quantity of Hazardous Wastes generated

Details of hazardous waste minimization activity

Materials received

Final Quantity of waste generated

Net reduction in waste generation quantity and percentage

Date.....

Place.....

.....

Name and signature of the Head of facility

FORM 4

[See rules 5(6) and 22(2)]

FORM FOR FILING ANNUAL RETURNS BY THE OCCUPIER OR OPERATOR OF FACILITY

(To be submitted by occupier/operator of disposal facility to State Pollution Control Board/Pollution Control Committee by 30th June of every year for the preceding period April to March),

1

.

Name and address of the generator/operator of facility

:

2.

Name of the authorised person and full address with telephone and fax number

:

3.

Description of hazardous waste

:

Physical Form with description

Chemical form

4.

Quantity of hazardous wastesQuantity

(in Tonnes/KL(in MTA)

:

Type of hazardous waste

Quantity

(in Tonnes/KL

(a)

(b)

(c)

.....

.....

5.

Description of storage

6.

Description of treatment

7.

Details of transportation

:

Name and address of consignee

Mode of packing

Mode of transportation

Date of transportation

8.

Details of disposal of hazardous waste

:

Name and address of consignee

Mode of packing

Mode of transportation

Date of transportation

9.

Quantity of useful materials sent back to the manufacturers* and others#

:

Name and type of material sent back to

Quantity in Tonnes/KL

Manufacturers*

Others#

*Delete whichever is not applicable

#Enclose list of other agencies

Date.....

Place.....

Signature.....

Designation.....

FORM 5

[See rule 8(1)]

FORM OF APPLICATION FOR GRANT/RENEWAL OF REGISTRATION OF INDUSTRIAL UNITS POSSESSING ENVIRONMENTALLY SOUND MANAGEMENT FACILITIES FOR REPROCESSING/RECYCLING

(To be submitted to the Central Pollution Control Board in triplicated by the Reprocessor/Recycle)

1.

Name and Address of the unit :

2.

Name of the occupier or owner of the unit with designation, Tel/Fax

3.

Date of commissioning of the unit

4.

No.

of workers (including contract labourers)

5.

Consent validity

(a)Water

(Prevention and Control of Pollution) Act, 1974 valid up to

(b)Air

(Prevention and Control of Pollution Act, 1981 valid upto.....

6.

Product manufactured during the last three years (Tonnes/year)

Year

Name of Product

Quantity in Metric Tonnes or KL.

(a)

(b)

(c)

7.

Raw material consumption during last three years (Tonnes/year)

Year

Name of the Raw Material consumed

Quantity in Metric Tonnes or KL

(a)

(b)

(c)

8.

Manufacturing process

Please attach manufacturing process flow diagram for each product(s)

9.

Water consumption

Industrial.....m3/day

Domestic.....m3/day

10.

Water cess paid up to (date)

.....

11.

Waste water generation as per consent.....m3/day Industrial /Domestic

Actual.....m3/day

(avg. of last 3 months)

12.

Waste water treatment (provide flow diagram of the treatment scheme)

Industrial

Domestic

13.

Waste water discharge

Quantity.....m3/day

Location.....

Analysis of treated waste water for parameters such as pH, BOD, COD, SS, OG and any other as stipulated by the SPCB/PCC (Attach details)

14.

Air Pollution Control

(a)Flow diagram for emission control system (s) installed for each process unit, utilities, etc.

(b)Details of facilities provided control of fugitive emission due to material handling, process, utilities, etc.

(c)Fuel consumption

Name of fuel

Quantity per Day/Month:

(a)

(b)

(d)Stack emission monitoring results

Stack attached to:

Emission

(for SPM, SO₂, NO_x and Metals (like Pb, etc.) in particulates in mg/Nm³

(e)Ambient air quality

Ambient air quality location:

Parameters

(SPM), SO₂, NO_x, Pb, any other) in ug/m³

15.

Hazardous waste management

(a)Waste generation

Sl.No

Name

Category

Quantity

(last 3 years)

(b)Details on collection, treatment and transport

:

(c)Disposal

:

(i)Please attach details of the disposal facilities

(ii)Please attach analysis report of characterization of hazardous waste generated

(including leachate test is applicable)

16.

Details of hazardous wastes proposed to be acquired through sale/negotiation/contract or import as the case may be for use as raw materials

1.Name

2.Quantity required per year

3.Waste listing and No. in Annexure VIII (List A)/Annexure IX (List B) of Basel Convention (BC)

4.Hazard Characteristic as per Annexure III of BC

17.

Occupation safety and health aspects

Please provide details of facilities provided

18.

Remarks

(i)Whether industry has provided adequate pollution control system/equipment to meet the standards of emission/effluent

Yes/No

(ii)Whether HW collection and Treatment, Storage and Disposal Facility (TSDF) are operating satisfactorily

Yes/No

(iii)Whether conditions exists or likely to exists of the hazardous waste being handled/processed of posing immediate or delayed adverse impacts on the Environment

Yes/No

(iv)Whether conditions exists or is likely to exists of the wastes being handled/processed by any means capable of yielding another material, e.g. leachate which may possess eco-toxicity

Yes/No

19.

Any other information

(i)

(ii)

(iii)

20.

List of enclosures as per rule

|||||||

Date.....

Place.....

Signature.....

Designation.....

FORM 6

[See rules 8(7)]

FORM FOR FILING ANNUAL RETURNS AND RECORDS ON RECYCLABLE

HAZARDOUS WASTES BY THE RECYCLERS

(To be submitted by recyclers to State Pollution Control Board/Pollution Control Committee by 30 June of every year for the preceding period April to March)

1.

Name and address of the recycler:

2.

Name of the authorized person and full address with telephone and fax number:

3.

Installed annual capacity to recycle or dispose the hazardous waste

(in MTA):

4.

Quantity hazardous waste (in MTA) purchased/sold

Type of wastes

Sources of purchase/sold

Quantity (in MTA)

5.

Quantity of hazardous wastes processed:

Type of wastes processed

Quantity (in MTA)

6.

Quantity and type of material recovered (in MTA)

Type of material recovered

Quantity (in MTA)

7.

Quantity of useful materials sent back to the generators/manufacturers* and others#

Name and type of

Quantity in

material sent back to Tonnes/KL

Manufacturers*

Others#

8.

Quantity of hazardous waste generated (in MTA) and its disposal methods

Type of wastes

Quantity (in MTA)

Method of Disposal

|||||||

* delete whichever is not applicable

enclose list of other agencies

Place.....

Date.....

Signature:

Designation

FORM 7

[See rule 15 (1) and 16 (1)]

APPLICATION FOR IMPORT OR EXPORT OF HAZARDOUS WASTE FOR REPROCESSING/RECYCLING/REUSE
From

.....

.....

TO BE MAILED BY IMPORTER

To

The Member Secretary,

.....State Pollution Control Board/.....Pollution Control Committee

Sir,

I/We apply for permission for import of recyclable hazardous wastes.

FOR OFFICE USE ONLY

1.

Code No.

:

2.

Whether the unit is situated in a critically polluted area as identified by the Ministry of Environment and Forests

:

If yes provide details

TO BE FILLED IN BY APPLICANT

1. Name and Address of the Exporter with telephone number :

2. Details of hazardous waste to be exported/imported for recycling/reprocessing/reuse :

Sl. No.

Particulars of hazardous waste

Six digit Code No.*

Constituent (s) expected

Quantity MT/KL

Any special handling requirement?

3. The hazardous waste permitted shall be fully insured for transit as well as for any accidental occurrence and its cleanup operation.

4. The exported wastes shall be taken back, if it creates a genuine environmental hazard or shall take all such measures to treat and dispose in an environmentally benign manner upto the satisfaction of concerned SPCB/PCC. All such costs involved in such operation shall be borne by Exporter and/or Importer

5. Name and Address of the importer with telephone number

6. Whether authorization obtained : (Enclose the copy).

7. Whether you have received such imported hazardous waste in the past and if yes give details.

Sl.No.

Description of hazardous wastes

Country of Export

Year

Quantity in tonnes

8. Whether the importer has :

5. (a) Adequate facility to handle imported hazardous waste : (If yes furnish details).

(b)

Adequate facility to handle the hazardous wastes generated by the use of such imported hazardous wastes : (Provide details)

9. Break-up of the imported wastes :

a. The total quantity applied for : Tonnes

b. Out of (a) above, how much quantity after initial in-situ purification, will be available as raw material : Tonnes

c. Out of (b) above, how much quantity will be converted into the useful product or co-product : Tonnes

10. Means of Transport (Road, Rail, inland waterway, sea, air) including country of export, transit and import,also point

of entry and exit where these have been designated.

11. Information on special handling requirements including emergency provision in case of accident: (Attach details)

12. Undertaking

I hereby solemnly undertake that

(i)

The full consignment shall be cleared in one lot by arranging authorized transporter under my supervision with due prior intimation to the SPCB/PCC. District Collector and Police Station and the imported waste shall be admitted in an enclosure especially provided in the premises.

(ii)

The waste permitted shall be fully insured for transit as well as for any accidental occurrence and its clean-up operation.

(iii)

The record of consumption and fate of the imported waste shall be monitored and report sent to the SPCB/PCC every fortnight.

(iv)

At every step of consumption of 25, 50, 75 and 100% of the imported waste, the situation in the store shall be shown to the SPCB/PCC at our cost.

(v)

The hazardous waste which gets generated in our premises by the use of imported hazardous waste in the form of raw material shall be treated and disposed of and only as per conditions of authorisation.

(vi)

I agree to bear the cost of export and mitigation of damages if any.

(vii)

I am aware that there are significant penalties for submitting a false certificate/undertaking/disobedience of the rules and lawful orders including the possibility of fine and imprisonment.

Date.....

Place.....

Signature of the Applicant

Designation

FORM 8

[See rules 15(1) and 16(1)]

APPLICATION FOR TRANSBOUNDARY MOVEMENT OF HAZARDOUS WASTE

Sl.No.

Description

Details to be furnished by the Exporter/Importer

1.

Exporter

(Name Address)

Contact person :

:

Tel/fax

:

:

Reason for export

:

2.

Importer/Recycler

(Name Address):

Contact person :

:

Tel/fax

:

- :
- 3.
- Application concerning (1)
- Applicants reference number
- A.
- Single/Multiple movement :
- :
- B.
- Recovery/Reprocessing Operation :
- :
- C.
- Pre-authorized recovery/reprocessing facility(1)
- :
- 4.
- Total intended number of shipments
- :
- 5.
- Estimated quantity(3) in Kg/Liters
- :
- 6.
- Intended date(s) or period of time for shipment(s)
- :
- 7.
- Intended carrier(s) (name, address)(2)
- :
- Contact person: Tel/fax.
- :
- 8.
- Waste generator (s) (Name, address)(2)
- :
- Contact Person Tel/fax
- :
- Site of generation Process
- :
- 9.
- Method(s) of recycling(4)
- :
- R Code
- :
- Technology employed
- :
- 10.
- Means of transport(4)
- :
- 11.
- Packaging types(s) (4)
- :
- 12.
- (i) Designation and complete chemical composition of waste
(attach details)
- :

(ii) Special handling requirements

:

13.

Physical characteristics(4)

:

14.

Waste identification code

:

Basel No

:

OECD No.

:

UN No.

:

ITC

(HS)

:

Customs Code (H.S.)

:

15.

OECD classification(1) (attach details)

(a) amber/red/other

:

(b) Number

:

16.

Y-Number(4)

:

17.

H-Number(4):

:

18.

(a) UN identification Number

:

(b) UN shipping name

:

(c) UN class (4)

:

(d) Other

:

19.

Concerned states, code number of competent authorities, and specific points of entry and exit

:

State of export

:

States of transit

:

State of import

:

20.

Customs offices of entry and/or departure

Entry:

Departure

:

21.

Exporter's/Generator's declaration:

I certify that the information is complete and correct to my best knowledge. I also certify that Legally-enforceable written contractual obligations have been entered into and that any applicable insurance or other financial guarantees are or shall be in force covering the transboundary movement.

Name:

Signature:

Date:

22.

Number of annexes attached

FOR USE BY COMPETENT AUTHORITIES

23.

To be completed by competent authority of Import

:

Notification Received on

:

Transit

(Basel)

:

(a) Acknowledgement sent on

:

(b) Name of Competent authority, Stamp and/or signature

:

24.

Consent to the movement provided by the competent authority of Country

(a) Consent given on

:

(b) Consent expires on

:

(c) Specific condition

:

(Yes/No)

(Please attach)

(d) Name of Competent authority, Stamp and/or signature

:

FOR USE BY CUSTOMS OFFICES

25.

COUNTRY OF EXPORT/DISPATCH OR CUSTOMS OFFICE OF EIXIT

:

The waste described overleaf has left the country on

:

Stamp

:

Signature

:

26.

COUNTRY OF IMPORT/DESTINATION

The waste described overleaf has entered the country on

:

Stamp

:

Signature

:

27.

STAMPS OF CUSTOMS OFFICES OF TRANSIT COUNTRIES

Name of Country

Entry

Department

Notes: (1) Enter X in appropriate box; (2) Attach list if more than one; (3) Attach detailed list of multiple shipment; (4)

See following codes

List of abbreviations used in the Movement Document

RECOVERY OPERATIONS (S.No.9)

R1

Use as a fuel (other than in direct incineration) or other means to generate energy

R2

Solvent reclamation/regeneration

R3

Recycling/reclamation of organic substances which are not used as solvents

R4

Recycling/reclamation of metals and metal compounds

R5

Recycling/reclamation of other inorganic materials

R6

Regeneration of acids or bases

R7

Recovery of components used for pollution abatement

R8

Recovery of components from catalyst

R9

Used oil re-refining or other reuses of previously used oil

R10

Land treatment resulting in benefit to agriculture or ecological improvement

R11

Uses of residual materials obtained from any of the operations numbered R 1 to 10

R12

Exchange of wastes for submission to any of the operations numbered R 1 to R 11

R13

Accumulation of material intended for any operation numbered R 1 to R 12

Means of Transport (Sl.No.10)

Packaging Types

H Number (Sl. No. 17) and UN Class

(Sl.No.18)

R=Road

1.Drum

UN Class

H Number

Designation

T=Train/Rail

2.Wooden barrel

1

H1

Explosive

S=Sea

3.Jerrican

3

H3

Inflammable liquids

A=Air

4.Box

4.1

H4.1

Inflammable solids

W=Inland Waterways

5.Bag

4.2

H4.2

Constituents or wasted liable to spontaneous combustion

6.Composite packaging

4.3

H4.3

Constituents or wastes which, in contact with water emit inflammable gases

7.Pressure receptable

8.Bulk

9.Other

(specify)

5.1

H5.1

Oxidizing

5.2

H5.2

Organic peroxides

6.1

H6.1

Poisonous(acute)

6.2

H6.2

Infectious wastes

8

H8

Corrosives

H 10

Liberation of toxic gases in contact with air or water

9

H11

Toxic

(delayed or chronic)

H12

Ecotoxic

H13

Capable, by any means, after disposal of yielding another material, e.g., leachate, which possesses any of the

characteristics listed above

Physical Characteristics (Sl.No. 13)

1.Powdery/powder

2.Solid

3.Viscous/paste

4.Sludge

5.Liquid

6.Gaseous

7.Other

(specify)

[FORM 9

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

[See rules 15(5), 16(5) and 16(6)]

TRANSBOUNDARY MOVEMENT-MOVEMENT DOCUMENT

Sl.

No.

Description

Details to be furnished by the Exporter/Importer

1.

(i) Exporter (Name Address) :

:

Contact person :

:

Tel./Fax

:

:

(ii) Waste Generator (name and address)(1):

:

Contact person with Tel./Fax:

:

(iii) Site of generation (excluded for **category)

:

2.

Importer/Recycler

(name and address)

:

Contact person with Tel./Fax

:

Movement subject to single/multiple

:

3.

Corresponding to applicant Ref. No., if any

:

4.

Bill of lading (attach copy)

:

5.

Designation and chemical composition of the waste

:

6.

Physical characteristics(3)

:

7.

Actual quantity kg/litre

:

8.

Waste identification code

:

Basel No

:

OECD No.

UN No.

:

ITC

(HS)

:

Customs Code (H.S.)

Other

(specify)

:

9.

OECD classification(2)

(a)Amber/red/other

[attach details]

:

(b)number

:

10.

Packaging Type(3)

Number

11.

UN classification

:

UN shipping name

:

UN identification No.

:

UN Class(3)

:

H Number(3)

:

Y Number

:

12.

Special handling requirements

:

13.

Exporter's declaration for hazardous waste:

I certify that the information in Sl.No. 1 of 12 above is complete and correct to my best knowledge. I also certify that legally-enforceable written contractual obligations have been entered into and are in force covering the transboundary movement regulation/rules.

:

Date:

Name:

Signature:

Exporter's declaration for waste paper:

I certify that the information in Sl.No. 1 of 12 above is correct to the best of my knowledge. I also certify that legally-enforceable written contractual obligations have been entered into. I also certify that the consignment does not have any hazardous waste, municipal waste or biomedical waste.

Date:

Name:

Signature:

14.

Shipment received by Importer/Recycler

Quantity received.....kg/litres

Date:

Name:

Signature:

15.

Method of Recovery

:

R.

Code if applicable

:

Technology employed (Attached details if necessary)

:

16.

I certify that nothing other than declared goods covered as per HW (M,H and TM) Rules is intended to be imported in the above referred consignment and will be recycled.

Date:

Signature:

17.

Specific conditions on consenting to the movement, if applicable

:

(Attach details)

Notes:- (1) Attach list, if more than one; (2) Enter X in appropriate box; (3) See codes on the reverse (x) Immediately contact Competent Authority; (4) if more than three carriers, attach information as required in Sl.No.5.

LIST OF ABBREVIATIONS USED IN THE MOVEMENT DOCUMENT

RECOVERY OPERATIONS (S.No.9)

R1

Use as a fuel (other than in direct incineration) or other means to generate energy

R2

Solvent reclamation/regeneration

R3

Recycling/reclamation of organic substances which are not used as solvents

R4

Recycling/reclamation of metals and metal compounds

R5

Recycling/reclamation of other inorganic materials

R6

Regeneration of acids or bases

R7

Recovery of components used for pollution abatement

R8

Recovery of components from catalyst

R9

Used oil re-refining or other reuses of previously used oil

R10

Land treatment resulting in benefit to agriculture or ecological improvement

R11

Uses of residual materials obtained from any of the operations numbered R 1 to 10

R12

Exchange of wastes for submission to any of the operations numbered R 1 to R 11

R13

Accumulation of material intended for any operation numbered R 1 to R 12

Means of Transport (Sl.No.10)

Packaging Types

H Number (Sl. No. 17) and UN Class

(Sl.No.18)

R=Road

1.Drum

UN Class

H Number

Designation

T=Train/Rail

2.Wooden barrel

1

H1

Explosive

S=Sea

3.Jerrican

3

H3

Inflammable liquids

A=Air

4.Box

4.1

H4.1

Inflammable solids

W=Inland Waterways

5.Bag

4.2

H4.2

Constituents or wasted liable to spontaneous combustion

6.Composite packaging

4.3

H4.3

Constituents or wastes which, in contact with water emit inflammable gases

7.Pressure receptable

8.Bulk

9.Other

(specify)

5.1

H5.1

Oxidizing

5.2

H5.2

Organic peroxides

6.1

H6.1

Poisonous(acute)

6.2

H6.2

Infectious wastes

8

H8

Corrosives

H 10

Liberation of toxic gases in contact with air or water

9

H11

Toxic

(delayed or chronic)

H12

Ecotoxic

H13

Capable, by any means, after disposal of yielding another material, e.g., leachate, which possesses any of the characteristics listed above

Physical Characteristics (Sl.No. 13)

1.Powdery/powder

2.Solid

3.Viscous/paste

4.Sludge

5.Liquid

6.Gaseous

7.Other

(specify)

Y Number (S.No.13) refer to categories of waste listed in Annexure I and II of the Basel Convention as well as more detailed information can be found in an instruction manual available from the Secretariat of the Basel Convention]

FORM 10

[See rule 15(5)]

[Substituted by S.O. 1799(E), dated 21.7.2009 (w.e.f. 21.7.2009).]

FORMAT FOR MAINTAINING RECORDS OF HAZARDOUS WASTE IMPORTED AND EXPORTED

1. Name and address of the importer/exporter:

2. Date and reference number of issuance of permission to import/export hazardous waste:

3. Description of hazard waste:

Sl.No.

Dates of import/export and relevant consignment numbers

Origin/destination of waste

Total volume and weight (in kilograms)

Physical Form

Chemical form

Test report

4. Description of storage, treatment and reuse of hazardous waste :

Sl.No.

Dates of import/export and relevant consignment numbers

Total volume and weight (in kilograms)

Test report

Method of storage

Method of the treatment and reuse (Give details)

FROM 11

[See rule 20(2)]

TRANSPORT EMERGENCY (TREM)CARD

(To be carried by the transporter during transportation of hazardous wastes, provided by the Occupier or Operator of a Facility)

1. Characteristics of hazardous wastes:

Sl.No

Type of Waste

Physical Properties

Chemical Constituents

Exposure Hazards

First Aid Requirements

2. Procedure to be followed in case of fire:

3. Procedure to be followed in case of spillage/accident/explosive:

4. For expert services, please contact:

(i)

Name and Address:

(ii)

Telephone No.:

.....

(Name and Signature of Occupier/authorised representative)

FORM 12

[See rule 20(2)]

MARKING OF HAZARDOUS WASTE CONTAINER

Hazardous Waste*

Handle with Care

Waste Category No.....

Compatible Group.....

Total Quantity.....

Date of Storage.....

Contents and State of the Waste :

Sender's Name and Address

Receiver's Name Address.....

Phone.....

Phone.....

E-mail.....

E-mail.....

Tel. and Fax No.....

Tel. and Fax No.....

Contact person.....

Contact person.....

In case of emergency please contact.....

Notes: 1. Background colour of label fluorescent yellow.

2. The words 'HAZARDOUS WASTES' 'HANDLE WITH CARE' to be prominent and written in red in Hindi, English and in Vernacular Language

3. Label should be of non-washable material.

* Delete which ever is not applicable.

FORM 13

[See rule 21(1)]

HAZARDOUS WASTE MANIFEST

1.

Occupier's Name Mailing Address
(including Phone No.)

:

2.

Occupier's Registration No.

:

3.

Manifest Document No.

:

4.

Transporter's Name Address (including Phone No.)

:

5.

Type of Vehicle

:

(Truck/Tanker/Special Vehicle)

6.

Transporter's Registration No.

:

7.

Vehicle Registration No.

:

8.

Designated Facility Name Site Address

:

9.

Facility's Registration No.

:

10.

Facility's Phone

:

11.

Waste Description

:

12.

Total Quantity

:

.....m3 or MT

13.

Consistency

:

(Solid/Semi-Solid/Sludge/Oily/Tarry/Slurry)

14.

Transport Description of Wastes

:

15.

Containers

:

Number

Type

16.

Total Quantity

:

.....m3 or MT

17.

Unit Wt/Vol

:

.....m3 or MT

18.

Waste Category Number

:

19.

Special Handling Instructions Additional
Information

:

20.

Occupier's Certificate

:

I hereby declare that the contents of the consignment are fully and accurately described above by proper shipping name and are categorised, packed, marked, and labeled, and are in all respects in proper condition for transport by road according to applicable national government regulations.

Typed Name and Stamp:

Signature

:

Month

Day

Year

21.

Transporter Acknowledgement of receipt of Wastes

Typed Name and Stamp:

Signature:

:

Month

Day

Year

22.

Discrepancy Note space

23.

Facility Owner or Operator's Certification of Receipt of Hazardous Waste

Typed Name and Stamp:

Signature:

Month

Day

Year

||||||

FORM 14

(See rule 24)

FORMAT OF ACCIDENT REPORT

[To be submitted by the occupier or operator of a facility and the transporter to the SPCB/PCC]

1.

The date and time of the accident

:

2.

Sequence of events leading to accident

:

3.

The hazardous waste involvement in accident

:

4.

The date for assessing the effects of the accident on health or the environment

:

5.

The emergency measures taken

:

6.

The steps taken to alleviate the effects of accidents

:

7.

The steps taken to prevent the recurrence of such an accident

:

Place.....

Date.....

Signature.....

Designation.....

FORM 15

[See rule 26(1) and (2)]

APPLICATION FOR FILING APPEAL AGAINST THE ORDER PASSED BY CPCB/PCC OF THE UNION TERRITORY

1.

Name and address of the person making the appeal

:

2.

Number, date or order and address of the authority to which passed the order, against which appeal is being made

:

3.

Ground on which the appeal is being made

:

4.

Relief sought for

:

5.

List of enclosures other than the order referred in Para 2 against which the appeal is being filed

:

Signature.....

Name and address.....

Related AI tags, queries and research notes

Translation